



MISSOURI HOUSE OF REPRESENTATIVES
WITNESS APPEARANCE FORM

BILL NUMBER: HB 3533		DATE: 4/28/2026	
COMMITTEE: Crime and Public Safety			
TESTIFYING: ☐ IN SUPPORT OF ☒ IN OPPOSITION TO ☐ FOR INFORMATIONAL PURPOSES			
WITNESS NAME			
BUSINESS/ORGANIZATION:			
WITNESS NAME: ARNIE C. AC "HONEST-ABE" DIENOFF		PHONE NUMBER: 314-440-9000	
BUSINESS/ORGANIZATION NAME: STATE PUBLIC ADVOCACY		TITLE: STATE PUBLIC ADVOCATE	
ADDRESS: POST OFFICE BOX #1535			
CITY: O'FALLON		STATE: MO	ZIP: 63366
EMAIL:	ATTENDANCE:	SUBMIT DATE: 4/28/2026 12:00 AM	
THE INFORMATION ON THIS FORM IS PUBLIC RECORD UNDER CHAPTER 610, RSMo.			



MISSOURI HOUSE OF REPRESENTATIVES
WITNESS APPEARANCE FORM

BILL NUMBER: HB 3533		DATE: 4/28/2026	
COMMITTEE: Crime and Public Safety			
TESTIFYING: ☐ IN SUPPORT OF ☒ IN OPPOSITION TO ☐ FOR INFORMATIONAL PURPOSES			
WITNESS NAME			
REGISTERED LOBBYIST:			
WITNESS NAME: CHANCE HEPOLA		PHONE NUMBER:	
REPRESENTING: MISSOURI CHAMBER		TITLE:	
ADDRESS:			
CITY:		STATE: MO	ZIP:
EMAIL:	ATTENDANCE:	SUBMIT DATE: 4/28/2026 12:00 AM	
THE INFORMATION ON THIS FORM IS PUBLIC RECORD UNDER CHAPTER 610, RSMo.			



MISSOURI HOUSE OF REPRESENTATIVES
WITNESS APPEARANCE FORM

BILL NUMBER: HB 3533		DATE: 4/28/2026	
COMMITTEE: Crime and Public Safety			
TESTIFYING: ☐ IN SUPPORT OF ☒ IN OPPOSITION TO ☐ FOR INFORMATIONAL PURPOSES			
WITNESS NAME			
REGISTERED LOBBYIST:			
WITNESS NAME: MIKE WINTER		PHONE NUMBER: 573-230-6644	
REPRESENTING: MO GAMING ASSOCIATION		TITLE:	
ADDRESS: P.O. BOX 305			
CITY: JEFF CITY		STATE: MO	ZIP: 65102
EMAIL:	ATTENDANCE:	SUBMIT DATE: 4/28/2026 12:00 AM	
THE INFORMATION ON THIS FORM IS PUBLIC RECORD UNDER CHAPTER 610, RSMo.			



MISSOURI HOUSE OF REPRESENTATIVES
WITNESS APPEARANCE FORM

BILL NUMBER: HB 3533		DATE: 4/28/2026	
COMMITTEE: Crime and Public Safety			
TESTIFYING: ☐ IN SUPPORT OF ☒ IN OPPOSITION TO ☐ FOR INFORMATIONAL PURPOSES			
WITNESS NAME			
INDIVIDUAL:			
WITNESS NAME: SARAH BERRY		PHONE NUMBER:	
BUSINESS/ORGANIZATION NAME:		TITLE:	
ADDRESS:			
CITY:		STATE:	ZIP:
EMAIL:	ATTENDANCE: Written		SUBMIT DATE: 4/21/2026 8:52 AM
THE INFORMATION ON THIS FORM IS PUBLIC RECORD UNDER CHAPTER 610, RSMo.			

This testimony addresses structural and regulatory concerns arising from HB 3533, particularly regarding the expansion of authority of the Missouri Gaming Commission and the restructuring of gambling-related revenue systems.

Legal Concerns:

HB 3533 significantly expands the authority of the Missouri Gaming Commission while increasing reliance on gambling-related revenue streams.

The bill removes existing limitations on wagering amounts, losses, and buy-in thresholds, thereby shifting financial risk to consumers while expanding state revenue dependency on gambling activity.

Additionally, the bill centralizes substantial regulatory and financial authority within a single administrative body, including licensing, enforcement, and revenue distribution functions.

While such delegation may be permissible, the breadth of authority combined with limited transparency provisions—particularly restrictions on public access to financial and tax information—raises concerns regarding accountability and oversight.

Further, the restructuring of admission fees and implementation of new taxation mechanisms introduces complex revenue flows tied to continuous patron presence and remote wagering activity, warranting careful evaluation of long-term fiscal and regulatory impacts.

Conclusion:

Although HB 3533 falls within the legislature's authority to regulate gambling, it represents a significant expansion of centralized regulatory control and revenue dependence. The cumulative effects of expanded authority, reduced transparency, and increased exposure to gambling-related risk warrant careful consideration to ensure appropriate safeguards and oversight mechanisms are maintained.



MISSOURI HOUSE OF REPRESENTATIVES
WITNESS APPEARANCE FORM

BILL NUMBER: HB 3533		DATE: 4/28/2026	
COMMITTEE: Crime and Public Safety			
TESTIFYING: ☐ IN SUPPORT OF ☒ IN OPPOSITION TO ☐ FOR INFORMATIONAL PURPOSES			
WITNESS NAME			
INDIVIDUAL:			
WITNESS NAME: SARAH BERRY		PHONE NUMBER:	
BUSINESS/ORGANIZATION NAME:		TITLE:	
ADDRESS:			
CITY:		STATE:	ZIP:
EMAIL:	ATTENDANCE: Written		SUBMIT DATE: 4/28/2026 7:17 AM
THE INFORMATION ON THIS FORM IS PUBLIC RECORD UNDER CHAPTER 610, RSMo.			

HB 3533 is not a routine gaming adjustment.

It is a large-scale revenue extraction and redistribution mechanism built on unstable assumptions, unclear statutory authority, and internally contradictory fiscal design.

This proposal should be rejected in its current form.

1. THIS IS A HIDDEN TAX EXPANSION—NOT A TECHNICAL FIX

HB 3533 dramatically increases the financial burden on Missouri's gaming sector through:

- **A near tripling of admission fees (\$2 ? \$5.50, plus recurring 2-hour charges)**
- **A new 13% tax on adjusted gross receipts from gambling**
- **A 24% tax on sports wagering revenue**
- **A new 1.5% remote wagering access fee**

This is not modernization.

This is layered taxation across multiple fronts—without clear analysis of behavioral impact, market contraction, or competitive displacement to neighboring states.

2. THE BILL SPENDS MONEY THAT MAY NOT EXIST

The fiscal note explicitly warns:

"There may not be enough available funds for the transfers outlined in this proposal."

Yet the bill mandates:

\$56M+ annually to the Veterans Commission

\$28M+ to Developmental Disabilities

\$14M+ to Historic Preservation

Additional \$15M transfer layers from the Gaming Commission Fund

These are not projections—they are obligated distributions tied to volatile revenue streams.

This creates a structural risk where:

Statute promises funding

Revenue fails to materialize

The state is left reconciling politically protected programs with insufficient funds

That is not budgeting. That is statutory overcommitment.

3. INTERNAL CONTRADICTIONS AND LEGAL VULNERABILITIES

The Department of Natural Resources directly flags that:

The bill conflicts with existing statutory limitations on the Historic Preservation Fund

It may create litigation exposure due to improper fund usage

Additionally:

The bill imposes new taxes without clearly specifying final distribution pathways (notably the 13% and 24% taxes)

It creates nonstandard revenue routing through the Gaming Commission before transfer to DOR, increasing opacity.

When agencies themselves cannot clearly map compliance with existing law, the legislature should not be advancing the policy.

4. UNSTABLE REVENUE BASE—DECLINING ADMISSIONS

The entire funding model relies on flat or stable casino admissions, despite documented decline:

FY22: 29.7M

FY25: 27.5M

Trend: consistent negative growth

Yet the bill assumes:

Stable participation

No behavioral change from increased fees

No market shift to online or out-of-state gaming

That is not conservative forecasting—that is willful blindness.

5. REGRESSIVE FEE STRUCTURE DISGUISED AS POLICY

The admission fee now applies:

Every two hours

Regardless of winnings or losses

Regardless of income level

This functions as a time-based access tax, disproportionately impacting:

Lower-income patrons

Casual players

Individuals already statistically vulnerable to gambling losses

At the same time, the bill allocates only one cent toward compulsive gambling mitigation.

That is not policy balance—that is optics.

6. POLICY STACKING WITHOUT STRATEGY

HB 3533 attempts to simultaneously:

Increase taxes

Increase fees

Expand program funding

Redirect existing revenue streams

Introduce new wagering structures

All without a unified framework for sustainability, enforcement clarity, or economic impact.

This is not targeted legislation.

This is a revenue grab stitched together across multiple agendas.

CONCLUSION:

HB 3533 is structurally unsound, fiscally overpromised, legally vulnerable, and economically shortsighted.

It expands taxation while relying on declining participation.

It mandates funding without guaranteeing revenue.

It creates legal conflict within existing statutes.

And it shifts burden onto consumers under the guise of redistribution.

Missouri deserves better than a bill that spends money it does not have, through a system it cannot clearly defend.

This bill should not advance.

The State of Missouri doesn't get to run an overdraft—so why are we passing bills that spend money before it even exists?